



Appeal Decision

Site visit made on 11 August 2026

by S McIntyre BSc (Hons), CEng, MICE, MCIHT

an Inspector appointed by the Secretary of State

Decision date: 14 September 2026

Appeal Ref: 6009340

Verge by Abingdon Road / Broadway, Didcot OX11 9BL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Miss Ashleigh Boyce, AMP Clean Energy, against the decision of South Oxfordshire District Council.
 - The application Ref is P25/S1790/FUL.
 - The development proposed is construction and operation of a micro energy storage project.
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Decision

1. The appeal is allowed and planning permission is granted for construction and operation of a micro energy storage project at the verge by Abingdon Road / Broadway, Didcot OX11 9BL in accordance with the terms of the application, Ref P25/S1790/FUL, subject to the conditions in the attached schedule.

Preliminary Matters

2. The location of the development is defined by the submitted plans, and I am satisfied that the appeal site can be accurately located from the address and plans.
3. The Council has prepared a Joint Local Plan (JLP) for South Oxfordshire and Vale of White Horse, which, once adopted, will replace the existing local plans. The JLP was submitted for examination in December 2024 and hearing sessions have commenced but not completed. Therefore, the JLP may be subject to change prior to its adoption, which limits the weight that can be afforded to the emerging policies in it in respect of this decision. Further no party has referred to any specific policies in the emerging plan. Consequently, I have considered the appeal having regard to policies in the statutory development plan.
4. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026, and the appellant and Council were invited to consider whether the revised Framework had relevance to their case. I have considered submissions received from both parties.

Main Issue

5. The main issue is the effect of the development on the character and appearance of the area.

Reasons

6. The site is located on the grass verge adjacent to the roundabout junction of Hadden Hill (A4130), Abingdon Road (A4130) and Broadway, on a key route into Didcot from the surrounding area. The character of the area is heavily influenced by

infrastructure, including the adjacent highway, including streetlights and road signs, the overhead electricity line and pylons visible in the near distance, and the elevated railway line with its prominent gantry carrying overhead electricity cables on the other side of the roundabout. Also, in the verge to Abingdon Road, adjacent to the roundabout, is an electricity substation which, whilst small, is visually prominent. I observed during my site visit that vegetation around the substation had recently been cleared, possibly as part of works underway on the adjacent site, where publicity boards indicate that a development of a self-storage use is underway.

7. Despite the dominance of nearby infrastructure, when combined with the nearby trees and hedges and the adjacent open fields, the site contributes to a sense of openness and verdancy on this north side of the roundabout for users of the public highway in the vicinity of the appeal site.
8. Planning permission has been granted for a large strategic residential development of up to 750 dwellings, known as Ladygrove East (planning application reference number P19/S0720/O), that includes provision of a wide strategic cycleway a little beyond the verge, parkland, allotment area and housing. I observed significant construction activity on the Ladygrove East site during my site visit. A connection between the strategic cycleway and the roundabout is proposed a short distance from the appeal site. As a consequence of development in the area, the character north of the roundabout will become more urban and less open.
9. The development would be modest in scale and low in height relative to other infrastructure features in the locality noted above and, due to its small footprint, it would occupy only a small area of the highway verge along this part of the highway. Whilst its design and materials are functional, it would not have an incongruent appearance in the setting given its proximity to existing infrastructure. Furthermore, the facility would be at least partially screened by proposed tree planting.
10. The development would nonetheless introduce new built form to this roadside verge in a prominent location where several roads converge, and at a proposed pedestrian and cycle entrance to the Ladygrove East development. It would be conspicuous in close public views from the highway, and the facility would interrupt the views that are currently available across the adjacent fields. It would, albeit slightly, erode the extent of the buffer that would otherwise be provided between the road network and Ladygrove East. It follows that the proposal would lead to a reduction in openness and verdancy to the detriment of local character. Due to the small-scale of the proposal, the effects would be minor in nature and localised in scale, but they would nonetheless be harmful.
11. Overall, I conclude that the proposal would cause harm to the character and appearance of the area. Consequently, there would be conflict with policies STRAT3, DES1 and DES2 of the South Oxfordshire Local Plan (2020) (the Local Plan) which require development within the Didcot Garden Town Masterplan Area to positively contribute to the achievement of the Didcot Garden Town Masterplan principles, which include design that adds value, respects existing landscape character and reflects the positive features that make up the character of the local area.

Other Considerations

12. The Battery Energy Storage System proposed would import electricity from the local network at times of low demand or high renewable energy availability and it would export that electricity back to the grid during periods of high demand. As such, it would enable us to use energy more flexibly and help de-carbonise our energy system cost-effectively, as is recognised in respect of electricity storage in the Planning Practice Guidance (PPG).
13. The proposal would be consistent with the Framework's objective to support the development and operation of energy infrastructure in ways which align with wider development, clean power, and net zero objectives (including the delivery of clean power by 2030). Whilst the benefit of the proposal is not precisely quantified in the evidence, Policy W3 of the Framework is clear that applicants should not be required to demonstrate the need for renewable or low carbon energy development and electricity network infrastructure; and that substantial weight should be given to the benefits of improving energy security and the transition to a net zero future, as well as the contribution that small-scale renewable and low carbon energy projects can make to reduction in greenhouse gas emissions.
14. Notwithstanding its small scale, the proposal would make an important contribution to ensuring energy security and the transition towards a net zero future. Indeed, Policy DES9 of the Local Plan states that the Council encourages schemes for renewable and low carbon energy generation at all scales and provides support for such planning applications where there would be no significant adverse effects in respect of specific matters, including landscape. In accordance with the Framework, these benefits of the scheme carry substantial positive weight.

Other Matters

15. Concerns have been raised regarding highway safety. However, the Highway Authority was consulted on the application and did not identify any issues in this regard. Given the alignment of the adjacent roads and the setback of the proposed facility from the highway edge, there would be no detriment to driver, pedestrian, or cyclist visibility. The effects of construction traffic on the highway network would be temporary in duration and could be effectively managed through a construction traffic management plan. Moreover, the evidence includes a site layout plan which shows there would be no impediment to the delivery and use of the footpaths and cycleways proposed as part of the Ladygrove East development.
16. Guidance produced by the National Fire Chief's Council, which is referenced in the PPG, emphasizes the need to eliminate or reduce hazards to emergency responders and the public through the careful siting of battery storage infrastructure. Whilst the proposal would be located near to active travel routes proposed for the Ladygrove East development, there would be a good degree of separation afforded by adjacent verges and landscaping. Therefore, in the absence of substantive evidence to the contrary, the proposal would be sited to avoid a safety hazard.

Conditions

17. I have had regard to the list of suggested conditions provided by the Council and have considered these in light of the Framework and the PPG and I have amended the conditions as necessary.

18. Conditions relating to the commencement date and plans are required for certainty. I have removed the “tailpiece” from the Council’s suggested condition relating to the approved plans to avoid uncertainty about what has been permitted.
19. Given the proximity of the appeal site to a busy roundabout a pre-commencement condition is necessary, requiring submission and written approval by the Council of a construction traffic management plan to demonstrate safe access and to mitigate impacts on the local highway during construction. The appellant has provided written agreement to this pre-commencement condition.
20. The appellant has stated that the proposed battery storage project would be visited for maintenance twice a year and that the checks would only require one person on foot. The service person is proposed to park in the nearest car parking space and then walk over to complete maintenance. Currently there does not appear to be any parking restrictions adjacent to the roundabout, possibly because there is currently no reason for people to park here. A detailed site maintenance plan needs to be secured by condition to avoid highway safety risks arising from inappropriate parking.

Planning Balance and Conclusion

21. The proposal would conflict with the development plan in respect of its effects on the character and appearance of the area. This brings the proposal into conflict with the development plan when read as a whole. It would also be in conflict with Policy DP3.1 of the Framework which expects developments to enhance their surroundings.
22. In this case, the substantial weight I ascribe to the benefits of the scheme, in respect of de-carbonisation and energy security, would outweigh the minor and localised harm I have identified in respect of the character and appearance of the area. There would, therefore, be clear justification for the harm that would arise, as is required by Policy DP3.3 of the Framework.
23. Consequently, whilst there would be conflict with the development plan, there are material considerations that indicate a decision should be made otherwise than in accordance with the development plan. I therefore conclude that the appeal should be allowed.

S McIntyre

INSPECTOR

Schedule of Conditions

1. The development to which this permission relates must be begun not later than the expiration of three years beginning with the date of this permission.
2. That the development hereby approved shall be carried out in accordance with the details shown on the following approved plans, Plan 1, Plan 2 Rev B, Plan 5, Plan 6, Plan 7 and Plan 8.
3. A Construction Traffic Management Plan (CTMP) shall be submitted to, and approved in writing by, the Local Planning Authority prior to the commencement of development. The approved CTMP shall be implemented prior to any works being carried out on site and shall be maintained throughout the course of construction of the development.
4. The development hereby permitted shall not be brought into operation until a Site Maintenance Plan has been submitted to, and approved in writing by, the Local Planning Authority. The development shall be maintained thereafter in accordance with the approved Site Maintenance Plan.